

OFFICE OF THE SECRETARY

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January 21, 2020

The Honorable Michael A. Savage
Judge of the Superior Court
County of Sacramento
720 Ninth Street
Sacramento, CA 95814

Re: James Paul Cross
CDCR No: G29793
Case No: 04F08966
Date of Sentence: August 15, 2008

Dear Honorable Michael A. Savage:

The purpose of this letter is to provide the court with the authority to resentence inmate James Cross, G29793, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

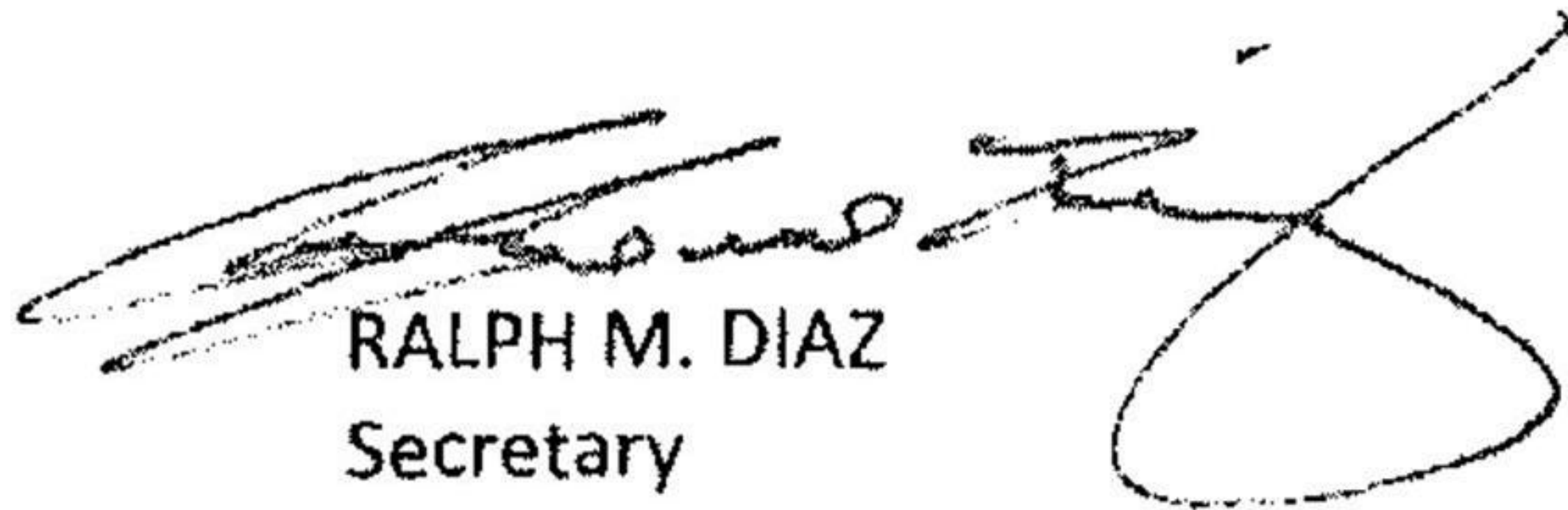
Inmate Cross has received one Rules Violation Report since being received to CDCR on August 21, 2008, however, he has remained disciplinary free since September of 2013. Inmate Cross is currently assigned as a Plant Operations Welder and his supervisor notes he continues to be an enthusiastic hard worker who strives to stay busy in the shop, works very well with others, has an excellent attitude, and continues to help train new inmate employees. Inmate Cross also participates in Alternatives to Violence Project, College (Correspondence), College (onsite), Rise, Reboot, Victim Offender Insight Group, and Military Assistance Program

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and has received Letters of Support from group sponsors acknowledging his commitment and dedication to these self-awareness and improvement groups.

Having reviewed the enclosed documentation it appears Cross' sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Honorable David De Alba, Presiding Judge
Sacramento County District Attorney's Office
Sacramento County Public Defender's Office